

COMPARISON · CANVAS · PROSE

redline

Clause-by-clause comparison — verbatim language with inline ~~/tracking the amendment.~~

SB-362 rewrote the opt-out link rule.

Cal. Civ. Code §1798.135 · amendment SB-362 (2024)

KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares consumers' personal information shall provide ~~two or more~~ at least one designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices," for use by consumers to ~~opt-out of the sale of~~ direct the business not to sell or share their personal information.

Why this matters. SB-362 collapses sale and sharing into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

SB-362 rewrote the opt-out link rule — annotated.

Cal. Civ. Code §1798.135 · amendment SB-362 (2024)

KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares¹ consumers' personal information shall provide ~~two or more~~ at least one² designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices,"³ for use by consumers.

- ¹ **Scope expansion.** Collapses sale and sharing into one duty.
- ² **Method floor.** One method is now sufficient; previously two were required.
- ³ **Link mandate.** Pins a uniform link title across all businesses.

SB-362 — old, new, and why side-by-side.

Cal. Civ. Code §1798.135 · amendment SB-362 (2024)

OLD

A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out of the sale of their personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices," for use by consumers to direct the business not

WHY

- scope. Sale and sharing fold into one duty.
- Method floor. One method now suffices.
- Link title. Homepage label is mandatory and standardised.

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When NOT to reach for redline.

Code diffs. For two code snippets side-by-side, use `compare-code`. redline is for natural language — legal, regulatory, contractual — not source code.

Paraphrased clauses. If the quoted text isn't verbatim, the diff is meaningless. Either render the actual clause with its diff, or move to `compare-prose` for narrative comparison.

Long passage with one tiny diff. If one word changed in a paragraph, quote only the affected sentence or two. A wall of unchanged text with one inline mark buries the change.

See also.

RELATED COMPONENTS

- `compare-code` — the diff is source code, not natural language
- `compare-prose` — two narrative alternatives, not verbatim amendments
- `before-after` — the change is structural state, not text
- `obligation-matrix` — comparing many regimes against shared obligations